

24SMCV02631 24SMCV02631

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Case Number: 24SMCV02631 Hearing Date: August 19, 2026 Dept: M

CASE NAME: Vasquez, et

al., v. Petnet Solutions, Inc., et al.

CASE NO.: 24SMCV02631

MOTION: Motion

to Compel Further Responses

HEARING DATE: 8/19/2026

Legal

Standard

In

the absence of contrary court order, a civil litigant's right to discovery is broad. "[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (CCP § 2017.010; see *Davies v. Superior Court* (1984) 36 Cal.3d 291, 301.) Section 2017.020(a) vests the Court with authority to limit the scope of discovery if the burden, expense, or intrusiveness of the discovery sought "clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." CCP § 2019.030 directs the Court to consider the needs of the case, amount in controversy, and the importance of the issues at stake in the litigation, and to consider whether the discovery being sought is unreasonably cumulative or duplicative, or is obtainable by a more convenient or less expensive or less burdensome way, when deciding whether to

restrict the frequency or extent of use of an authorized discovery method.

A motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. (CCP, § 2031.310(c).) A motion to compel further responses must set forth specific facts showing “good cause” justifying the discovery sought by the demand and must be accompanied by a declaration showing a “reasonable and good faith attempt” to resolve the issues outside of court. (CCP §§ 2016.040, 2031.310(b).) Absent a claim of privilege or attorney work product, the moving party meets its burden of showing good cause by a fact-specific showing of relevance. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.) If the moving party has shown good cause for the RPDs, the burden is on the objecting party to justify the objections. (Ibid.)

Analysis

Defendant Petnet Solutions, Inc.

moves to compel Plaintiff Henry Vasquez provide further responses, without objection, to Defendant's Requests for Production of Documents, Set One. Defendant requests that Vasquez and his counsel of record pay monetary sanctions of \$1,544.00. Vasquez has provided no opposition.

The Court might want to note that, while a further response without objection is owed to no. 30, a proper further response would be “no such documents exist”. Section 2031 does not require a party create new documents, only provide documents in “possession, custody or control”.

Petnet

demonstrates that, following the court's April 23 order, Vasquez served Responses on April 16, 2026. (Mekha Decl., ¶ 10.) The responses to RPD nos. 10, 11, and 30 consisted entirely of boilerplate and waived objections which violated the court's order. (Mekha Decl., ¶¶ 9, 10.) Reviewing the subject RPDs, good cause is apparent for the sought discovery. The RPDs seek categories of documents which are directly relevant or reasonably calculated to lead to the discovery of relevant evidence. RPD nos. 10 and 11 concern communications regarding the alleged exposure, which are directly relevant to the exposure at issue. RPD no. 30 seeks executed authorizations for the release of medical records, employment records, and insurance records. Such authorization

documents might lead to the discovery of evidence concerning Vasquez's claim for damages. Vasquez has failed to oppose and therefore failed to justify its waived and boilerplate objections.

Accordingly, the motion is GRANTED.

Plaintiff is ordered to provide further responses, without objection, to RPD nos. 10, 11 and 30, within 10 days. The Court notes, however, that while a further response without objection is owed to no. 30, a proper further response would be "no such documents exist." Section 2031 does not require a party to create new documents, only provide documents in "possession, custody or control."

Sanctions are imposed in the noticed amount of \$1,544.00 against Vasquez and his counsel of record. Sanctions are payable to Petnet's counsel of record within 30 days.